

		CA2d 67, 72, 1 CR 49, 53.] Furthermore, by defaulting, defendant is deemed to <i>admit</i> the material allegations of the complaint for purposes of the action. [See <i>Vasey v. California Dance Co., Inc.</i> (1977) 70 CA3d 742, 749, 139 CR 72, 76.] <u>MOTION TO VACATE DEFAULT</u> Motion is CONTINUED to October 22, 2026 at 1:30 pm in C34, for service of the motion to vacate on Defendant Elaine Muthoni Chegge. Proof of service of the motion to vacate on Defendant Elaine Muthoni Chegge must be filed with the court at least 7 days before the 10/22/26 hearing. Clerk to give notice as to all motions.
14.	30-2024-01411685 Bakr vs. In Motion O.C.	1. Motion for Judgment Not Withstanding the Verdict 2. Motion for New Trial *No tentative Ruling.
15.	30-2025-01485696 Durbin vs. General Motors, LLC	1. Motion for Summary Judgment and/or Adjudication Defendant General Motors, LLC (“Defendant” or “GM”) moves for summary judgment or summary adjudication of the causes of action for breach of express and implied warranties set forth in the Complaint of plaintiffs Anthony Durbin and Lesley-Ann Durbin (together, “Plaintiffs”). Plaintiffs’ evidentiary objections are OVERRULED. <u>Standing</u> Anthony leased the subject vehicle on September 29, 2020. When the lease ended, Plaintiffs jointly purchased the vehicle from Anaheim HY LLC in 2024. They assert two causes of action for breach of implied and express warranties under the Song-Beverly Act (SBA) based on the 2020 lease agreement. (Compl. ¶¶ 5-12.) GM argues that Lesley-Ann does not have standing under the 2020 lease agreement because she was not listed as a lessee and Plaintiffs have not brought their claims under the 2024 purchase contract. Plaintiffs argue Lesley-Ann has standing under the sales contract, which lists her as the buyer and Anthony as the co-buyer. However, the Complaint alleges claims based only on the 2020 lease. The Complaint makes no reference to the 2024 purchase of the vehicle. The pleadings frame the issues in a summary judgment motion. (<i>Hutton v. Fidelity National Title Co.</i> (2013) 213 Cal.App.4th 486, 493.) Because the Complaint is based only on the 2020 lease and Lesley-Ann was not a party to the lease, Lesley-Ann’s claims against GM fail as a matter of law. Thus, GM’s Motion for Summary Adjudication is GRANTED as to Lesley-Ann’s claims. <u>Breach of Express Warranty</u> GM argues Anthony cannot establish breach of an express warranty under the September 2020 lease because Anthony cannot show substantial impairment to the use, value, or safety during the lease. GM argues that Anthony derived the benefit of the bargain under the lease by driving the vehicle for more than the contracted-for limit under the lease and any argument that he felt unsafe in the vehicle is belied by the fact that he chose to purchase the vehicle when the lease was up. GM further argues